BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION; and DOES 1 through 10, inclusive,** Defendants.	Case No. 2:26-cv-02881-DAD-SCR **PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT FEDERAL EXPRESS CORPORATION** Propounding Party: Plaintiff Responding Party: Defendant Federal Express Corporation Set No.: One (Fed. R. Civ. P. 26, 33) Magistrate Judge: Hon. Sean C. Riordan District Judge: Hon. Dale A. Drozd

PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT FEDERAL EXPRESS CORPORATION

TO DEFENDANT FEDERAL EXPRESS CORPORATION AND ITS ATTORNEY OF RECORD:

Under Federal Rules of Civil Procedure 26 and 33, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Federal Express Corporation answer each interrogatory below separately and fully, in writing and under oath, and serve its answers on Plaintiff within thirty (30) days after service (plus three days if service is by mail under Rule 6(d)).

INSTRUCTIONS

1. Answer each interrogatory on the basis of all information available to You, including information held by Your employees, affiliates, agents, and vendors. If You cannot answer fully, answer to the extent possible and explain why.

2. Any objection must be stated with specificity (Rule 33(b)(4)). If You object to part of an interrogatory, answer the rest.

3. If You answer by reference to business records under Rule 33(d), identify the records by Bates number in enough detail for Plaintiff to locate them as readily as You could.

4. If You withhold information on a claim of privilege, describe it as required by Rule 26(b)(5)(A).

5. These interrogatories are continuing. Supplement Your answers as required by Rule 26(e).

DEFINITIONS

1. **"FedEx," "Defendant," "You," and "Your"** mean Defendant Federal Express Corporation and, to the extent it acted for or with Federal Express Corporation in connection with Plaintiff's applications, background screening, or hiring decisions, any parent, subsidiary, or affiliate (including FedEx Ground Package System, Inc. and any unit identified as "FEDEX GROUND HR"), and their officers, employees, agents, and vendors.

2. **"Plaintiff"** means Brendan Ngehsi Newanforbi, including under any variation of that name (for example, Brendan Ngwa Nforbi, Brendan Ngwanforbi, or Ngwa-Nforbi).

3. **"First Advantage"** means First Advantage Background Services Corp. and any affiliate that prepared or furnished a background report about Plaintiff to FedEx.

4. **"Report"** means every consumer report, investigative consumer report, background report, and update or version of one, concerning Plaintiff that First Advantage or any other consumer reporting agency furnished to FedEx, including the report FedEx admits (Answer, ECF No. 4, paragraphs 17, 20, 34) was provided to it on or before March 10, 2025.

5. **"Adverse Action"** means FedEx's decision to deny Plaintiff employment, and to withdraw any conditional offer of employment, in or about March 2025, including the adverse-action notice dated on or about March 19, 2025.

6. **"Registry Information"** means any information identifying Plaintiff as a registered sex offender, from any source, including the California Department of Justice Megan's Law website (Cal. Penal Code § 290.46), the National Sex Offender Public Website (NSOPW), any state registry, or any database compiled from them.

7. **"Prior Employment"** means each period, before January 2025, in which FedEx hired or employed Plaintiff, and each application Plaintiff submitted to FedEx before January 2025.

8. **"Document"** and **"communication"** have the broadest meaning allowed by Fed. R. Civ. P. 34(a)(1)(A), and include electronically stored information such as email, chat and instant messages, applicant-tracking-system records (including Paradox and Workday), portal records, notes, and audit logs.

9. **"Identify,"** for a person, means full name, job title, employer, and last known business address; for a document, its date, author, recipients, type, and Bates number if produced.

10. Unless otherwise stated, the relevant period is January 1, 2024 through the present, except that requests about Prior Employment cover any time.

INTERROGATORIES

INTERROGATORY NO. 1:

Identify each person who participated in, recommended, reviewed, or approved the Adverse Action, and describe each person's role.

INTERROGATORY NO. 2:

Identify the legal entity that (a) received Plaintiff's January 2025 application, (b) ordered the Report from First Advantage, and (c) made the Adverse Action, and state whether that entity was Federal Express Corporation, FedEx Ground Package System, Inc., or another entity.

INTERROGATORY NO. 3:

State every reason for the Adverse Action, and for each reason identify the documents and the persons with knowledge that support it.

INTERROGATORY NO. 4:

State all facts supporting Your contention (Status Report, ECF No. 10, at 2) that Plaintiff's application "contained material misrepresentations that independently justified the hiring decision," including, for each alleged misrepresentation: the exact wording of the question; Plaintiff's answer; the date the question was presented; whether it was presented before or after any conditional offer of employment; and the date FedEx first contended the answer was a misrepresentation.

INTERROGATORY NO. 5:

State whether FedEx would have taken the Adverse Action if the Report had contained no Registry Information, and state all facts supporting Your answer.

INTERROGATORY NO. 6:

Describe each search or component FedEx ordered from First Advantage concerning Plaintiff (including the package name, any sex offender registry search, and each account, client code, order, or search ID number used), identify who selected that package for the position, and state the source First Advantage searched for any Registry Information (for example, NSOPW, the California Megan's Law website, or another database).

INTERROGATORY NO. 7:

Describe the adjudication or scoring criteria (including any "client criteria" or eligibility matrix) applied to the Report, including how Registry Information is scored, and identify who applied the criteria to Plaintiff's Report.

INTERROGATORY NO. 8:

Identify each position and period of Prior Employment (title, facility, start and end dates, and reason employment ended), and identify each background check or consumer report FedEx obtained on Plaintiff in connection with each, from any vendor.

INTERROGATORY NO. 9:

For each background check identified in response to Interrogatory No. 8, state whether it disclosed Registry Information about Plaintiff and what, if anything, FedEx did in response.

INTERROGATORY NO. 10:

Describe each policy, procedure, guideline, or training in effect between January 1, 2024 and March 31, 2025 concerning the use of Registry Information in hiring decisions in

California, including any that refers to California Penal Code section 290.46.

INTERROGATORY NO. 11:

Identify each communication between FedEx and First Advantage concerning Plaintiff, by date, participants, and substance.

INTERROGATORY NO. 12:

Describe the position for which Plaintiff was considered in 2025, including title, facility, shift, duties, and whether the position involved supervising, or unsupervised contact with, minors or elder or dependent adults.

INTERROGATORY NO. 13:

State all facts supporting Your Eighth Affirmative Defense (that any use of Registry Information was to protect a person at risk under Cal. Penal Code § 290.46(j)(1)), and identify each person at risk You contend was protected.

INTERROGATORY NO. 14:

Describe any conditional offer of employment extended to Plaintiff in or about 2025, including its date, the position, hourly wage, expected weekly hours, and benefits.

INTERROGATORY NO. 15:

Identify each person who drafted, approved, or sent the adverse-action notice dated on or about March 19, 2025, and state the source of that notice's reference to the National Sex Offender Public Website and the California sex offender website (Answer ¶ 26).

INTERROGATORY NO. 16:

State whether any FedEx employee or agent accessed the California Megan's Law website or NSOPW concerning Plaintiff, and if so identify who, when, and for what purpose.

INTERROGATORY NO. 17:

State whether and when FedEx issued a litigation hold covering Plaintiff's application files, the Report, and communications with First Advantage, identify the custodians it covers, and state whether any document or electronically stored information concerning those subjects has been deleted, discarded, or lost since March 1, 2025, describing any such loss.

INTERROGATORY NO. 18:

If You contend that California Penal Code section 290.46(j)(2)(E) does not apply to the Adverse Action (including because any Registry Information came through the National Sex Offender Public Website or another source rather than the California Megan's Law website), state every factual basis for that contention and identify the documents supporting it.

Dated: September 25, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 2:26-cv-02881-DAD-SCR

V.

FEDERAL EXPRESS CORPORATION; and
DOES 1 through 10, inclusive
Defendants

PROOF OF SERVICE

/

I hereby certify that on September 25, 2026, I served a copy of the attached

Plaintiff's First Set of Interrogatories to Defendant FedEx (Set One),

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

(List Name and Address of Each Defendant or Attorney Served)

Allison A. Kray, Esq. (SBN 312544)
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, CA 92614
allison.kray@fedex.com
Attorney for Defendant Federal Express Corporation

I declare under penalty of perjury that the foregoing is true and correct.

Brendan Ngehsi Newanforbi, In Propria Persona